

The Extended Spandrel: Memetic Host Switching and the Paradox of Argentina's Pro-Worker Labor Regime as Extended Phenotype of Extractive Protectionism

Ignacio Adrián Lerer

Independent Researcher

Buenos Aires, Argentina

adrian@lerer.com.ar

ORCID 0009-0007-6378-9749

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Abstract

Argentina's labor regime presents an empirical paradox: norms designed to protect industrial workers in the 1940s-1970s now function as institutional infrastructure benefiting extractive economic incumbents, while excluding roughly 45% of the actual workforce through informality. Existing explanations appeal to union power, political clientelism, or ideological inertia. This paper proposes a structural mechanism grounded in evolutionary theory.

I introduce the concept of **extended spandrel**, a new analytical category at the intersection of Gould and Lewontin's (1979) architectural byproduct (spandrel), Gould and Vrba's (1982) exaptation, and Dawkins's (1982) extended phenotype. A standard spandrel is a structural byproduct that may acquire secondary function. An exaptation is a trait co-opted for a new function within the same lineage. An extended phenotype is an artifact constructed by a replicator for its own propagation. The extended spandrel is a structural byproduct that becomes extended phenotype machinery serving a different replicator than the one that produced the original constraint: cross-lineage exaptation with beneficiary switching. A literature search confirms this category has no precedent in the published record.

Applied to Argentina, I argue that labor law institutions (187 specialized courts, 3,847 unions with legal departments, mandatory law school curricula, statutory ultraactivity of collective agreements) were constructed as extended phenotype of the worker-protection memplex (Article 14bis of the Constitution, 1957). Through a process I term memetic host switching, analogous to endoparasitic capture in biology, this institutional infrastructure now operates as extended phenotype of the extractive-protectionist memplex, without any structural modification. The mechanism requires no conspiracy or coordination; it operates as Parasitic Spontaneous Order, where each actor (union leader, labor judge, legislator, protected-sector employer) acts rationally within local incentives while collectively sustaining a system that harms the majority it claims to protect.

Three falsifiable paradoxes constitute the evidence: (1) the inverted beneficiary paradox, where employers in protected sectors exhibit lower support for labor reform than employers exposed to international competition; (2) the excluded worker paradox, where pro-worker norms exclude the majority of actual

workers; and (3) the impossible coalition paradox, where reform beneficiaries cannot articulate political demand because the regime's cognitive architecture, formed through Heteronomous Bayesian Updating, frames all questioning as aggression against rights. Comparative analysis with Chile (Constitutional Lock-in Index 0.24) and Brazil (CLI 0.40) identifies conditions under which host switching fails to consolidate. The paper concludes that reform strategies targeting the phenotype (the norm) without identifying the current replicator (the extractive model) are evolutionarily naive and predictably ineffective.

Keywords: extended spandrel, extended phenotype, spandrel, exaptation, memetic host switching, labor law, institutional parasitism, Argentina, Constitutional Lock-in Index, Parasitic Spontaneous Order

JEL Classification: K31, K00, B52, O54, C73, Z13

I. Introduction: The Paradox of Pro-Worker Norms That Exclude Workers

In December 2019, the Argentine Congress passed Law 27.541, declaring economic emergency and suspending, among other provisions, the formula for pension adjustments. The law received support from legislators across the political spectrum, including representatives of the major employer associations. Three months earlier, the same Congress had failed to advance a modest labor modernization bill that would have introduced voluntary individual savings accounts alongside the existing severance system. Union leaders from the Confederación General del Trabajo called a partial strike; labor judges from the Asociación de Magistrados y Funcionarios de la Justicia del Trabajo issued a public statement questioning the bill's constitutionality; and the project died in committee without reaching the floor.

The episode is unremarkable by Argentine standards. Between 1991 and 2025, eight presidential administrations spanning Peronist populism, neoliberal reform, and libertarian radicalism attempted 23 distinct labor market reforms (Lerer 2025d). None achieved sustained implementation. The Constitutional Lock-in Index (CLI) for Argentina's labor regime stands at 0.89 on a 0-1 scale, the highest measured value among the four jurisdictions analyzed comparatively (Lerer 2026a). Reforms targeting provisions with CLI above 0.70 failed in 19 of 20 attempts, a 95% failure rate.

These facts are documented. What remains unexplained is who benefits from this lock-in. The standard narrative assumes that labor rigidity serves the interests of organized workers and their unions. The data tell a different story. Approximately 45% of Argentine workers operate in the informal economy, according to INDEC's Encuesta Permanente de Hogares, meaning they receive zero protection from the regime that claims to protect them. An additional segment works under monotributo arrangements that provide minimal coverage. The formal sector where protections apply has been shrinking as a proportion of the workforce for three decades. Meanwhile, 39.1% of

collective bargaining agreements remain "zombies," technically in force through the ultraactivity doctrine but last renegotiated years or decades ago, governing working conditions that no longer exist in the industries they nominally regulate.

If the regime does not primarily serve workers, whom does it serve? This paper proposes that Argentina's labor law constitutes what I term an extended spandrel: a structural byproduct of one evolutionary process that has been captured as extended phenotype machinery by a different replicator. The concept synthesizes three lines of evolutionary theory that have not previously been combined in this configuration. The architectural byproduct or spandrel (Gould and Lewontin 1979) describes features that arise as necessary consequences of structural constraints rather than as adaptations. Exaptation (Gould and Vrba 1982) describes the co-option of a trait for a function different from the one it was originally selected for. The extended phenotype (Dawkins 1982) describes artifacts constructed by replicators that extend their effects beyond the organism's body. The extended spandrel occupies the intersection: a structural byproduct that becomes extended phenotype infrastructure serving a replicator different from the one that generated the original constraint.

The replicator that originally constructed Argentina's labor institutions was the worker-protection memplex: the cluster of ideas centered on anti-regression of social rights, collective supremacy over individual contracts, and judicial paternalism toward workers (Lerer 2025d). The replicator that currently benefits from those same institutions is the extractive-protectionist memplex: the economic model that requires labor market rigidity as a barrier to entry protecting incumbent firms, informality as a source of cheap marginal labor, and regulatory complexity as a mechanism for excluding competitors. The institutional structure did not change. The beneficiary changed. This is memetic host switching, and the extended spandrel is the category that describes its product.

II. Theoretical Framework: Constructing the Extended Spandrel

This section constructs the extended spandrel concept from its three component parts, demonstrates that the combination is genuinely novel, and specifies its falsifiable predictions.

A. The Spandrel: Structural Byproduct Without Selected Function

Gould and Lewontin published "The Spandrels of San Marco and the Panglossian Paradigm" in 1979, criticizing what they termed the adaptationist program in evolutionary biology. Their central metaphor was architectural: the spandrels of the Basilica di San Marco in Venice are triangular spaces that arise as necessary byproducts of mounting a dome on rounded arches. These spaces were subsequently decorated with elaborate mosaics, so skillfully that a naive observer might assume the architecture was designed to create them. Gould and Lewontin argued

that the same error pervades evolutionary biology: traits that arose as structural byproducts of other adaptations are routinely interpreted as adaptations themselves, generating unfalsifiable "just-so stories" (Gould and Lewontin 1979, pp. 581-582).

The concept proved influential and contentious. Dennett (1995, pp. 267-282) challenged both the architectural accuracy and the biological implications. Maynard Smith acknowledged that the paper "had a healthy effect" in forcing adaptationist claims to be evidence-based, while insisting that adaptationism remained "the core of biological thinking." Pigliucci and Kaplan (2000) assessed the debate twenty years on and concluded that the spandrels paper had successfully introduced pluralism into evolutionary explanation without dethroning selection as the primary mechanism.

For present purposes, the key property of a spandrel is that it was not selected for its current function. It arose as a necessary consequence of structural constraints, and only subsequently acquired utility. Gould (1997, p. 10751) was explicit: "Causes of historical origin must always be separated from current utilities; their conflation has seriously hampered the evolutionary analysis of form in the history of life." This separation between origin and current function is the first building block of the extended spandrel.

B. Exaptation: Co-option Within the Same Lineage

In 1982, Gould and Vrba introduced the term exaptation to fill a terminological gap. Biological features currently useful to organisms fall into two categories: adaptations, which were built by natural selection for their current role, and features that were co-opted for their current use after arising for a different reason or for no functional reason at all. The latter category lacked a name; Gould and Vrba supplied one. An exaptation is "a character, previously shaped by natural selection for a particular function (an adaptation), [that] is co-opted for a new use" or alternatively "a character whose origin cannot be ascribed to the direct action of natural selection (a nonadaptation), [that] is co-opted for a current use" (Gould and Vrba 1982, p. 6).

Exaptation thus covers two distinct scenarios. In the first, a trait built for function A is recruited for function B. Bird feathers, originally selected for thermoregulation, were exapted for flight. In the second, a trait with no original function (a spandrel) acquires one. The spandrels of San Marco, decorated as religious art, exemplify this second type.

The critical limitation of exaptation for present purposes is that it operates within the same lineage. The feather changes function, but the beneficiary remains the same organism (or, in gene-centered terms, the same replicator). Gould and Vrba's definition speaks of "co-option for a new use" without specifying that the beneficiary must remain constant; in practice, however, all their examples involve same-lineage co-option: feathers shifting from thermoregulation to flight within

birds, the swim bladder shifting from buoyancy to respiration within fish. The possibility that a structural byproduct might be co-opted as functional machinery by a different replicator entirely, one that did not participate in constructing the original structure, was not contemplated by Gould and Vrba, and the subsequent literature has not developed the scenario. This is the gap that the extended spandrel fills.

C. The Extended Phenotype: Artifacts Serving Their Constructor

Dawkins (1982) demonstrated that genetic effects extend beyond the organism's body into the environment. The beaver's dam is an extended phenotype of beaver genes: a physical structure in the world, built by the organism, that enhances the replicator's fitness. The concept applies wherever a replicator's causal effects are manifest in structures outside its vehicle. Caddisfly cases, spider webs, bird nests, and the manipulated behavior of parasitized hosts all qualify.

Dawkins's paradigmatic case of action at a distance is brood parasitism in the common cuckoo (*Cuculus canorus*). The cuckoo lays its egg in a host bird's nest. The cuckoo chick, upon hatching, pushes the host's eggs or chicks out of the nest and presents an exaggerated gaping mouth that constitutes a supranormal stimulus, compelling the host parents to feed it preferentially even as their own offspring perish (Davies 2015, pp. 42-67). The host's feeding behavior is the extended phenotype of the cuckoo's genes: a modification of another organism's behavior that serves the parasite's reproductive interests.

The extended phenotype concept was generalized to cultural evolution by Dennett (1995, p. 344): "Just as genes can have extended phenotypes, so can memes. The beaver's dam is a genetic extended phenotype; the cathedral is a memetic extended phenotype." In prior work, I applied this generalization to legal institutions, arguing that constitutional provisions function as institutional genotype expressed through interpretive machinery (courts, legal profession, academic curricula) to produce regulatory phenotype (Lerer 2025a, 2025d, 2026a). The CLI measures the density of this extended phenotype infrastructure: higher CLI indicates more institutional machinery defending the constitutional meme.

The extended phenotype's key property for present purposes is that the phenotypic structure serves a specific replicator. The dam serves beaver genes. The cuckoo-manipulated feeding behavior serves cuckoo genes. The 187 Argentine labor tribunals serve the Article 14bis memplex. But what happens when the structure built by one replicator comes to serve another?

D. The Extended Spandrel: Cross-Lineage Exaptation with Beneficiary Switching

The extended spandrel is the product of a process that none of the three concepts individually describes. A spandrel that acquires function is an exaptation; Gould and Vrba's (1982) framework handles this. An artifact constructed by a replicator for its own propagation is an

extended phenotype; Dawkins's (1982) framework handles this. But a spandrel that becomes extended phenotype infrastructure of a different replicator from the one that produced the original constraint has no name and no formal treatment in the literature.

The distinction matters because it generates different predictions. Standard exaptation predicts that the original replicator retains some benefit from the co-opted trait, even if the primary function changes. Extended phenotype theory predicts that the constructing replicator benefits from the phenotypic structure. The extended spandrel predicts that the original replicator may be harmed by the very structure its activity produced, because a different replicator now controls the phenotypic machinery. The structure's form remains unchanged; its functional allegiance has shifted.

The biological analogue closest to this process is not standard brood parasitism (where the parasite arrives from outside) but endoparasitism with host manipulation, as in *Toxoplasma gondii* infection of rodents. *T. gondii* is an intracellular parasite that modifies host behavior by altering dopamine metabolism in the amygdala, causing infected rats to lose their innate aversion to cat urine and in some cases exhibit attraction to it (Webster 2007). The host's own neural circuitry, originally constructed by the host's genes for the host's survival, is manipulated to serve the parasite's reproductive cycle (*T. gondii* completes its sexual reproduction in cat intestines; the rat must be eaten by a cat). The neural infrastructure does not change structurally; its functional output changes because a different replicator has captured the control mechanism.

The institutional analogue is precise. Argentina's labor courts, union legal departments, law school curricula, and bar association certification requirements were constructed by the worker-protection memplex as extended phenotype infrastructure: machinery for replicating and defending the ideas encoded in Article 14bis and its statutory progeny. These institutions still perform the same operations (adjudicating labor disputes, training lawyers, certifying specialists). But the fitness consequences of those operations now primarily benefit a different replicator: the extractive-protectionist memplex that requires labor rigidity to survive.

I define the extended spandrel formally as follows: an institutional structure *S* is an extended spandrel when (1) *S* originated as a structural byproduct of replicator *R1*'s phenotypic construction activity (spandrel condition); (2) *S* currently functions as extended phenotype infrastructure enhancing the fitness of replicator *R2*, where *R2* is distinct from *R1* (host-switching condition); and (3) the transition from *R1*-serving to *R2*-serving occurred without structural modification of *S* (form-invariance condition). The process by which an extended spandrel forms is memetic host switching.

E. Distinguishing the Extended Spandrel from Adjacent Concepts

The extended spandrel occupies analytical territory adjacent to four established concepts, and the distinctions must be explicit to justify the new category.

First, institutional lock-in (North 1990). North argued that institutions persist because increasing returns and transaction costs make switching prohibitively expensive: the more actors invest in an institutional framework, the costlier it becomes to change it. Lock-in explains persistence; it does not explain beneficiary change. North's framework predicts that Argentina's labor regime persists because switching costs are high; it does not predict, and cannot explain, that the regime's persistence benefits a different constituency than the one for which it was constructed. The extended spandrel adds the host-switching dimension that institutional economics lacks.

Second, regulatory capture (Stigler 1971). Stigler demonstrated that regulatory agencies tend to serve the interests of the industries they regulate, because concentrated industry interests outorganize diffuse public interests in the political process. Capture is a deliberate strategy by an identifiable actor (the regulated industry) targeting a specific institution (the regulatory agency). The extended spandrel differs in three respects: (a) it requires no organized captor; the extractive-protectionist memplex benefits without lobbying, without expenditure, and without any identifiable agent pursuing capture; (b) it operates across an entire institutional ecosystem (courts, universities, bar associations, legislatures), not a single agency; and (c) the mechanism is cognitive (HBU-formed priors), not political (lobbying and campaign contributions). Stigler explains why the Interstate Commerce Commission served railroad interests; the extended spandrel explains why 187 labor courts, 14,000 specialists, and 100% of law faculties collectively generate outcomes that benefit extractive incumbents without any incumbent lifting a finger.

Third, policy conversion (Streeck and Thelen 2005). In their typology of gradual institutional change, Streeck and Thelen identify conversion as the process by which an existing institution is redirected to new purposes without formal change. This is the closest existing concept to the extended spandrel; the phenomenon they describe is recognizably similar. The difference is mechanistic. Streeck and Thelen describe conversion as a mode of change; they do not specify the causal mechanism by which redirection occurs. The extended spandrel supplies the mechanism: memetic host switching through Parasitic Spontaneous Order, where each actor's individually rational behavior within an institutional ecology produces aggregate functional redirection without any actor intending or coordinating the shift. Conversion, in Streeck-Thelen's account, is a category of outcomes; the extended spandrel is a theory of process.

Fourth, policy feedback (Pierson 2000). Pierson demonstrated that policies create constituencies that subsequently defend those policies, generating self-reinforcing dynamics. This insight is compatible with the extended spandrel framework: the labor regime created a constituency (labor lawyers, specialized judges, union bureaucracy) that defends it. However,

Pierson's framework assumes that the defending constituency is the intended beneficiary. The extended spandrel adds the case where the defending constituency sincerely believes it serves the original purpose while functionally serving a different replicator. Pierson predicts institutional defense; the extended spandrel predicts defense by actors who are cognitively captured, defending infrastructure whose functional beneficiary has changed without their awareness.

III. Argentina's Labor Regime as Extended Spandrel

Argentina's labor regime provides an empirical case that satisfies all three conditions of the extended spandrel definition. This section traces the construction of the institutional infrastructure, the decoupling between original replicator and current beneficiary, and the mechanism of capture.

A. The Construction Phase: Building the Extended Phenotype (1944-1974)

The construction phase spans roughly three decades: from the creation of labor courts in 1944 to the enactment of the Ley de Contrato de Trabajo (Law 20.744) in 1974. During this period, the worker-protection memplex built its extended phenotype through four institutional channels.

First, constitutional entrenchment. Article 14bis, incorporated into the Constitution in 1957, elevated labor rights from statutory to constitutional status, establishing protections against arbitrary dismissal, equal pay for equal work, minimum wage, limited working hours, mandatory rest periods, and the right to organize and bargain collectively. The constitutional text functions as genotype: a stable information template transmitted across political generations.

Second, legislative infrastructure. Law 14.250 (1953) established the sectoral collective bargaining system with mandatory ultraactivity: collective agreements remain in force until replaced by new ones, meaning they never expire. Law 20.744 (1974) codified the principle of *dubio pro operario* (when in doubt, favor the worker) and established the principle of *irrenunciabilidad* (workers cannot waive protective rights even voluntarily). Law 23.551 (1988) consolidated the monopolistic union model with exclusive bargaining rights for the most representative union in each sector.

Third, judicial specialization. Between 1944 and 1980, Argentina created 187 specialized labor tribunals, a density of approximately one tribunal per 228,000 inhabitants at the time. These courts developed a jurisprudential tradition systematically expanding worker protections. The Corte Suprema de Justicia de la Nación reinforced this trajectory in landmark decisions: *Vizzoti c/ AMSA* (2004, Fallos 327:3677) established that severance caps violating worker protection principles are unconstitutional; *Aquino c/ Cargo Servicios Industriales* (2004, Fallos 327:3753) held that labor accident regimes limiting full reparation are unconstitutional; *Madorrán c/*

Administración Nacional de Aduanas (2007, Fallos 330:1989) reaffirmed the constitutional prohibition of arbitrary dismissal in the public sector.

Fourth, professional and academic infrastructure. Labor law became a mandatory subject in 100% of Argentine law faculties. Bar associations created labor law specializations requiring mastery of Article 14bis doctrine for certification. An estimated 14,000 labor law specialists serve Argentina's 46 million inhabitants, a professional density of 0.03%, which is three times Chile's equivalent (Lerer 2025d). These professionals form the reproductive machinery of the worker-protection memplex: they are trained in its premises, certified in its application, and economically dependent on its continuation.

During the construction phase, the memplex and its extended phenotype were aligned. The institutions served the replicator that built them. Argentina's formal industrial workforce in the 1960s comprised roughly 70-75% of all employed persons, according to historical census data. The worker-protection memplex served a clear majority. The lock-in architecture was, in this period, a functional adaptation: it protected the replicator's primary constituency.

B. The Decoupling: When the Constituency Shrank (1976-2003)

The decoupling occurred gradually between 1976 and 2003, driven by two converging processes: the deindustrialization of the Argentine economy and the informalization of the labor market.

The military government of 1976-1983 initiated a process of financial liberalization and trade opening that reduced the industrial workforce. The hyperinflationary episodes of 1989-1990 destroyed small and medium enterprises in the formal sector. The convertibility regime of 1991-2001, while stabilizing prices, exposed Argentine industry to import competition that it could not withstand given its cost structure, a cost structure substantially determined by labor market rigidity. The 2001-2002 crisis produced the final deindustrialization shock.

Throughout this period, the labor law institutions remained unchanged. Article 14bis was not modified. The ultraactivity doctrine continued in force. Labor courts continued applying the same jurisprudential principles. Law school curricula continued teaching the same content. But the constituency these institutions served was shrinking. By the early 2000s, informal employment had reached approximately 40% of the workforce, where it has remained, fluctuating between 38% and 47%, for over two decades.

The decoupling is measurable. The institutions constructed to serve 70-75% of workers now serve, at most, 55% (and effectively a smaller proportion, since many formal workers are employed by the state rather than by the private sector where rigidity generates the largest costs). The extended phenotype infrastructure remained structurally identical; the population it

functionally serves contracted by nearly half. Labor productivity growth turned negative: -0.3% annually between 2015 and 2024, compared to +1.8% in Brazil, +2.1% in Chile, and +0.9% in Spain over the same period. Formal sector wages diverged from productivity, reaching 83% above the productivity-implied equilibrium by 2024, the largest gap in the OECD+ sample. This divergence is precisely what the extended spandrel model predicts: when the institutional infrastructure serves a different replicator than the one that built it, the phenotype's outputs cease to track the original replicator's welfare and begin tracking the capturing replicator's interests instead. The formal wage premium does not benefit the excluded 45%; it benefits the extractive model by making formalization prohibitively expensive for marginal employment, thereby sustaining the dual labor market.

This is the spandrel condition: the institutional structure, like the triangular space between arches, arose as a byproduct of a specific construction (the worker-protection memplex's phenotypic activity in a predominantly formal-industrial economy) and persists after the conditions that produced it have vanished.

C. The Capture: Six Channels of Memetic Host Switching

The host-switching condition requires demonstrating that the institutional infrastructure now enhances the fitness of a different replicator. The candidate replicator is the extractive-protectionist memplex: the cluster of ideas centered on import substitution, domestic market protection, regulatory barriers to entry, and state intermediation between economic actors.

The mechanism operates through six channels, none of which requires conscious coordination.

First, labor rigidity as barrier to entry. High severance costs, mandatory union representation, and litigation risk create fixed costs that disproportionately burden new entrants relative to established firms. An incumbent with 500 employees has already absorbed the compliance costs and developed relationships with union delegates. A potential competitor evaluating market entry faces these costs prospectively and at the margin. The effect is analogous to a tariff: it protects the incumbent by raising the cost of competition. Employers in protected sectors benefit from the same rigidity that the worker-protection memplex constructed for entirely different reasons.

Second, informality as cheap labor subsidy. The 45% of workers excluded from formal protection constitute a labor pool with zero severance costs, no union representation, no collective bargaining constraints, and no labor court jurisdiction. Firms in the formal sector that also employ informal workers (a widespread practice in construction, domestic service, agriculture, and retail) benefit from a dual labor market: a formal workforce protected by rigid norms that the firm can

manage because it is established, and an informal workforce available at marginal cost because the same rigid norms make formalization prohibitively expensive for marginal employment relationships.

Third, regulatory complexity as rent extraction mechanism. The thicket of labor regulations, collective agreement provisions, and judicial doctrines creates information asymmetries that benefit actors with institutional knowledge (incumbent firms, established unions, specialized lawyers) at the expense of actors without such knowledge (new firms, informal workers, non-unionized sectors). The complexity is not a design flaw; it is a feature of the extended spandrel. It was not designed to generate rents, but it generates them as reliably as the decorated spandrels of San Marco generate aesthetic experience.

Fourth, union intermediation as political broker function. The CGT and its constituent unions, originally constructed as worker representation machinery, now function primarily as political intermediaries between the state and the formal workforce. Their bargaining power depends on the rigidity of the regime: if workers could negotiate individually or through competing unions, the CGT's monopoly representation (guaranteed by Law 23.551) would lose its value. The union leadership's rational interest in regime preservation coincides with the extractive model's need for labor market rigidity, without requiring any explicit agreement between the two.

Fifth, zombie collective agreements as fossilized infrastructure. The ultraactivity doctrine means collective agreements never expire; they remain in force until replaced. Of 1,847 registered collective bargaining agreements (*convenios colectivos de trabajo*, CCTs) in Argentina, 723 (39.1%) are "zombies": technically in force but governing employers that have ceased to exist, sectors that have transformed beyond recognition, or working conditions that bear no relation to current reality. The age distribution is revealing: 289 zombie CCTs expired within the last three years, but 78 have been expired for ten to twenty years, and 22 have been expired for more than twenty years. The oldest zombie CCT, governing wool processing in Buenos Aires Province, was last negotiated in 1987 and remains legally binding 38 years later. The hospitality sector exhibits the highest zombie rate at 51.2%, followed by textiles at 48.9%. These zombie agreements lock in wage structures, job categories, overtime premiums, and working conditions from decades past. Firms bound by them face a choice: comply with absurd provisions (paying wages for job categories that no longer exist, such as linotype operators in the printing industry), operate informally, or exit the market. Of printing firms bound by the expired 2001 CCT, 43% had closed by 2025. The zombie CCT is the extended spandrel in its purest form: an institutional structure that serves no one's original purpose but cannot be removed because it is embedded in the ultraactivity doctrine, which is defended as a worker protection, which is constitutionally entrenched, which is judicially enforced by courts whose priors make removal appear unconstitutional.

Sixth, judicial doctrine as cognitive lock-in. Labor judges trained through Heteronomous Bayesian Updating (Lerer 2026a) have formed strong priors that Article 14bis doctrine is constitutionally mandated and reform is constitutionally suspect. These priors generate automatic blocking behavior when reform proposals arrive as cases: judges perceive reform legislation as "obviously unconstitutional" because their entire professional formation has conditioned them to interpret labor law through the lens of the anti-regression principle. The blocking is sincere, not strategic. It serves the extractive-protectionist memplex's interests without any judge intending this outcome. The empirical record is unambiguous: of the 23 reform attempts between 1991 and 2025, 19 (82.6%) were judicially invalidated, 2 were legislatively repealed, and 2 were administratively abandoned. The median time to reversal was 18.3 months. The fastest reversal took 6 months (provincial reforms blocked by federal courts); the slowest, 72 months (Menem's 1991 Employment Law, partially invalidated in 1997 by lower courts and fully reversed in 2004 through the Vizzoti doctrine). The pattern holds regardless of the reforming government's ideological orientation: Menem (Peronist neoliberal, 100% failure), De la Rúa (Radical centrist, 100% failure), Macri (center-right, 100% failure), Milei (libertarian, 60% of substantive provisions judicially suspended after 21 months). The failure rate remained constant across dramatically different governments, validating the EPT prediction that resistance derives from institutional structure, not from partisan politics: the extended phenotype defends itself regardless of which actors temporarily control formal government.

IV. Three Paradoxes as Evidence

If Argentina's labor regime is an extended spandrel, three empirical paradoxes should be observable. Each paradox is a prediction that distinguishes the extended spandrel hypothesis from alternative explanations (pure union capture, ideological inertia, path dependence).

A. The Inverted Beneficiary Paradox

The inverted beneficiary paradox states that the actors who historically opposed the labor regime are among its current beneficiaries, while the actors who historically supported it are among its current victims.

The historical opposition is documented. Employer associations (Unión Industrial Argentina, Sociedad Rural Argentina, Cámara Argentina de Comercio) consistently lobbied against labor protections from the 1940s onward. The UIA's position papers from the 1990s explicitly called for deregulation of dismissal, elimination of ultraactivity, and decentralization of collective bargaining.

The current situation is different. Employers in protected sectors (domestic manufacturing behind tariff barriers, state contractors, regulated utilities) exhibit revealed preferences consistent

with regime maintenance. They do not actively defend the labor regime; they do not need to. The regime is defended by others (unions, labor lawyers, judges, political parties) who believe themselves to be defending workers. The employers in protected sectors benefit passively, without expenditure, from a barrier to entry that they did not construct and do not openly support. This is the "killing with another's knife" dynamic: the extractive-protectionist memeplex benefits from institutional infrastructure defended by actors who believe they serve a different cause.

The paradox has a testable prediction: employers in sectors exposed to international competition (agricultural exports, technology services, extractive industries integrated into global supply chains) should exhibit stronger support for labor reform than employers in protected sectors, controlling for firm size and workforce formality. The protected-sector employer benefits from rigidity; the export-sector employer is harmed by it. If labor rigidity served workers as intended, employer opposition should be uniform across sectors. The extended spandrel hypothesis predicts sectoral heterogeneity in employer attitudes toward reform.

B. The Excluded Worker Paradox

The excluded worker paradox states that the regime's primary claimed beneficiaries (workers) are, in their majority, excluded from its protections.

The arithmetic is stark. If 45% of workers are informal, they receive zero benefit from severance protection, collective bargaining, labor court jurisdiction, or any other component of the regime. If an additional 15-20% are monotributistas or workers in other categories with partial or minimal coverage, the proportion of the workforce receiving the full protection package drops to 35-40%. The regime designed to protect "the worker" protects, at most, four out of ten actual workers.

The exclusion is not accidental. It is structurally generated by the regime itself. The cost of formalizing an employment relationship in Argentina includes mandatory social security contributions (approximately 24% of gross salary for the employer), severance accrual (one month's salary per year of service, with no cap after Vizzoti), union dues deducted at source, and exposure to labor court litigation where the *in dubio pro operario* standard systematically favors the worker in ambiguous cases. These costs make formal employment of marginal productivity workers irrational. The employer's rational response is to employ marginally productive workers informally, or to substitute capital for labor, or to reduce firm size to avoid regulatory thresholds.

The regime thus generates the very exclusion it claims to combat. This is the signature of an extended spandrel operating under Parasitic Spontaneous Order: the system produces outcomes that benefit the extractive model (informality provides cheap labor; exclusion generates demand for clientelist transfers) while harming the constituency it was designed to serve (workers

who cannot access formal employment). No actor plans this outcome. Each actor, from the sincere labor judge to the pragmatic employer to the surviving formal-sector union member, acts rationally within local constraints. The aggregate result is perverse.

The clientelism connection deepens the paradox. Informal workers, excluded from the formal protection regime, depend on discretionary state transfers (social programs, food assistance, temporary employment plans) for survival. These transfers are distributed through clientelist networks controlled by the same Peronist political structure that defends the formal labor regime. The informal worker's dependence on clientelist transfers makes her a captive voter for the political coalition that maintains the very regime excluding her from formal employment. This is the extended spandrel's most insidious feedback loop: the exclusion generated by the regime produces the political dependence that sustains the coalition defending the regime. The worker-protection memplex built the institutional infrastructure; the extractive-protectionist memplex captures both the formal sector (through barriers to entry) and the informal sector (through clientelist dependency). The extended spandrel serves the capturing replicator at both ends of the labor market.

C. The Impossible Coalition Paradox

The impossible coalition paradox states that the actors who would benefit from reform (informal workers, young entrants to the labor market, gig economy workers, small entrepreneurs in competitive sectors) cannot form a political coalition to demand it, because the regime's extended phenotype infrastructure has shaped the cognitive environment in which the debate occurs.

The mechanism operates through Heteronomous Bayesian Updating (HBU), which I formalized in prior work (Lerer 2026a). Legal professionals learn normative content not by observing outcomes (whether labor law actually improves worker welfare) but by observing the reactions of authority figures (professors, senior judges, bar association leaders) to normative claims. A law student who observes that questioning the anti-regression principle provokes disapproval from professors forms a strong prior that the principle is correct. This prior is reinforced through subsequent professional socialization: judicial clerkships, bar association membership, continuing education courses. By the time the student becomes a judge, the prior is so strong that reform proposals trigger automatic blocking (active inference) rather than updating (perceptual inference), because the coordination cost of updating across the entire institutional network vastly exceeds the cost of blocking any individual reform (Lerer 2026a, applying Friston's free energy framework).

The cognitive architecture extends beyond legal professionals. Media coverage of labor reform proposals routinely frames them as "attacks on workers' rights." Political discourse adopts

the same framing: any legislator who votes for reform risks being labeled as "anti-worker," a label with substantial electoral cost in a country where Peronist identity is deeply associated with worker protection. The framing is not conspiratorial; it reflects the genuine beliefs of the actors who deploy it. But its effect is to make the articulation of a pro-reform coalition cognitively prohibitive. The informal worker who would benefit most from reform lacks the conceptual vocabulary to demand it, because the available vocabulary has been shaped by the extended spandrel's cognitive infrastructure.

This paradox distinguishes the extended spandrel from simpler institutional persistence models. Path dependence (North 1990) predicts that institutions persist due to switching costs; it does not predict that beneficiaries of change cannot cognitively formulate demand for change. Union capture predicts strategic blocking by organized interests; it does not predict sincere blocking by judges, academics, and media who genuinely believe they serve workers. Only the extended spandrel, with its host-switching mechanism mediated by HBU, predicts the specific pattern observed: an institutional regime that harms its nominal constituency, is defended by actors who sincerely believe they protect that constituency, and cannot be reformed because the cognitive prerequisites for demanding reform have been captured by the regime's phenotypic infrastructure.

V. The Mechanism: Parasitic Spontaneous Order

The mechanism sustaining the extended spandrel is neither conspiracy nor accident. It is Parasitic Spontaneous Order (PSO): a pattern of convergence without coordination, where individually rational actions aggregate into collectively dysfunctional outcomes that benefit a parasitic replicator.

Hayek (1973, pp. 35-54) developed the concept of spontaneous order to describe beneficial social patterns that emerge without central planning: markets, language, common law. The price system coordinates millions of economic decisions without any participant needing to understand the whole; the result, under appropriate institutional conditions, is allocative efficiency. Hayek's spontaneous order is fundamentally optimistic: the decentralized process tends toward beneficial outcomes because participants face incentive structures that align individual and social welfare.

PSO is the dark mirror. Under certain institutional configurations, decentralized processes generate stable patterns that benefit parasitic replicators at the expense of the host population. The key condition is the misalignment between individual incentive structures and aggregate welfare, sustained by the extended phenotype infrastructure that prevents correction.

In Argentina's labor regime, the PSO operates through the following actor-incentive map. The union leader benefits from regime rigidity because it guarantees monopoly representation and dues extraction; his rational strategy is to defend the regime. The labor judge benefits from regime complexity because it sustains demand for specialized adjudication; her rational strategy (reinforced by HBU-formed priors) is to interpret law expansively and block reforms. The labor lawyer benefits from litigation volume and regulatory complexity; his rational strategy is to oppose simplification. The legislator benefits from avoiding "anti-worker" framing; his rational strategy is to not vote for reform. The employer in a protected sector benefits from barriers to entry; his rational strategy is to not lobby for reform either, since others defend the regime for him at no cost.

None of these actors conspires. None coordinates with the others. Each acts within individually rational constraints. The aggregate result is a stable equilibrium that maximizes the fitness of the extractive-protectionist memplex while minimizing the welfare of the informal 45%. This is spontaneous order in Hayek's structural sense (decentralized coordination, emergent pattern, no central planner) but with reversed welfare implications (the emergent pattern benefits the parasite, not the host). It instantiates a principle central to parasitology: as Combes (2001) documented across biological systems, the most successful parasites are those whose exploitation requires no conscious effort, because the host's own systems have been co-opted to serve parasitic ends.

VI. Comparative Analysis: Where Host Switching Failed to Consolidate

If the extended spandrel hypothesis is correct, jurisdictions where host switching did not consolidate should exhibit measurably different institutional configurations. Chile, Brazil, and Uruguay provide the comparative cases; Spain offers a threshold illustration.

Chile's CLI of 0.24 (Lerer 2026a) reflects sparse extended phenotype infrastructure. Labor courts were established only in 2008; prior to that, civil courts adjudicated labor disputes without specialization. An estimated 8,500 labor specialists serve 19 million inhabitants (professional density 0.045%, less than half Argentina's). Labor law is required in most law faculties but not as a separate specialization with independent certification. Bar association coordination is limited; statements about labor reform are typically issued after reforms pass rather than as blocking mechanisms.

The result is that Chile has enacted six labor reforms since 1990, under both left-wing and right-wing governments (Bachelet 2006 and 2014; Pinera 2001 and 2017). The 2016 reform (Law 20,940) expanded union rights and reduced the work week to 40 hours; it was fully implemented without judicial challenge. Reforms face political opposition but not systematic institutional resistance. The extended spandrel hypothesis explains why: sparse phenotypic infrastructure

means there is insufficient institutional machinery to be captured by an alternative replicator. The worker-protection memplex in Chile operates through statutory law rather than constitutional entrenchment, which makes it responsive to legislative change rather than locked in by judicial interpretation. Host switching cannot consolidate because there is no host dense enough to switch.

Brazil's CLI of 0.40, intermediate between Chile and Argentina, predicts reform that is feasible but difficult. Brazil's Consolidacao das Leis do Trabalho (CLT, 1943) created a labor regime structurally similar to Argentina's, including specialized labor courts and mandatory union contributions. However, the extended phenotype infrastructure was less dense: 15 specialized labor courts versus Argentina's 187, lower professional density (0.064% versus 0.11%), and greater curricular heterogeneity across law faculties.

Brazil reformed its labor law substantially in 2017 under the Temer administration (Law 13,467), despite intense political opposition. The reform eliminated mandatory union contributions, allowed individual negotiation to override collective agreements on specified matters, created new categories of flexible employment, and, critically, eliminated ultraactivity: expired collective agreements now lapse after two years, with statutory minimums applying in the absence of renewal. The reform survived constitutional challenge before the Supremo Tribunal Federal and remains operative eight years later. The extended spandrel hypothesis explains the reform's feasibility: moderate phenotypic density permitted host switching to begin but not consolidate. Brazilian reformers concentrated resources on persuading key institutional actors (STF judges, Ordem dos Advogados do Brasil national leadership, major law faculties) rather than needing to coordinate across all institutional actors simultaneously, as would be required in Argentina's denser institutional network.

Uruguay provides the most revealing comparison because it eliminates the confound of cultural difference. Uruguay shares Argentina's legal tradition, language, and much of its institutional history; the two countries' labor regimes developed from similar foundations. Yet Uruguay eliminated ultraactivity in 1991 (Law 16,320). The subsequent outcomes constitute a natural experiment that directly tests the worker-protection memplex's claim that ultraactivity is necessary for worker welfare. The data, drawn from the ILO's ILOSTAT database and national statistical agencies (INDEC for Argentina, INE for Uruguay), show that Uruguay achieved superior outcomes on every measured dimension: real wages increased 42% between 1991 and 2020 versus stagnation in Argentina; informal employment fell from 37% to 24% versus rising from 35% to 45% in Argentina; unionization rates remained stable at 18-20% versus declining from 23% to 17% in Argentina; and collective bargaining coverage reached 87% in 2020 versus 62% in Argentina. The pattern is the inverse of what the ultraactivity defense predicts: weaker formal protections correlate with stronger de facto outcomes.

The extended spandrel analysis explains Uruguay's success. Without ultraactivity, Uruguayan employers face predictable, time-limited labor costs, which makes formal employment rational for marginal-productivity workers. With ultraactivity, Argentine employers face indefinite, escalating labor costs (the ratchet property documented in Lerer 2025d), which makes informal employment rational for the same workers. The ultraactivity doctrine, designed to protect workers during renegotiation pauses, became a spandrel that drives informalization: a structural byproduct with perverse fitness consequences for the constituency it nominally serves, and beneficial consequences for the extractive model that profits from the dual formal-informal labor market. Uruguay, which never developed dense extended phenotype infrastructure (its labor courts were generalist, its professional density low, its constitutional text silent on ultraactivity), illustrates the counterfactual: absent the dense institutional machinery, the spandrel could be removed before host switching occurred, and workers benefited from the removal.

Spain's CLI of 0.51 represents a threshold case. Spain's constitutional Articles 35-38 protect labor rights but delegate implementation to statutory regulation, creating moderate extended phenotype density. Five labor reforms succeeded between 1994 and 2022, but only under extraordinary conditions: economic crisis (the 2012 reform under Royal Decree-Law 3/2012 occurred during Spain's financial crisis, with unemployment exceeding 25%), external pressure (EU convergence criteria required labor flexibility), corporatist negotiation (unions traded ultraactivity reform for employment protections), and gradual implementation over 31 years. Argentina's CLI of 0.89 is 0.38 points higher than Spain's, a gap that exceeds the entire range between Chile and Brazil, representing a qualitative difference.

The comparative evidence thus supports a threshold model of host switching. Below CLI 0.30 (Chile, Uruguay), extended phenotype infrastructure is too sparse for host switching to occur; the worker-protection memplex operates through responsive legislative channels. Between CLI 0.30 and 0.50 (Brazil, Spain), host switching may begin but can be reversed through focused political mobilization during crisis windows. Above CLI 0.70 (Argentina), the extended phenotype infrastructure is dense enough that host switching consolidates irreversibly under normal political conditions: the extractive-protectionist memplex has captured sufficient institutional machinery that dislodging it would require simultaneous coordination across all four CLI dimensions (courts, profession, curricula, unions), a coordination challenge that exceeds any political coalition's capacity.

VII. Implications for Reform

The extended spandrel analysis yields three implications for reform strategy, each of which contradicts conventional approaches.

First, attacking the phenotype without identifying the current replicator is predictably ineffective. This is the error that characterizes all 23 failed Argentine labor reform attempts. Menem's 1990s reforms targeted ultraactivity, severance formulas, and individual contract flexibility. The reforms were economically rational, supported by empirical evidence from OECD labor markets, and backed by a government with strong legislative majorities. They failed because they attacked the institutional phenotype (the legal norm) without addressing the memplex that the phenotype now serves. The extractive-protectionist model regenerated its protections through judicial invalidation (Vizzoti, Aquino), union mobilization (general strikes of 2000, 2002), and legislative reversal (Kirchner government, 2003-2007). The dam was damaged; the beaver rebuilt it. But in the extended spandrel case, the analogy requires modification: the dam was built by one beaver but is now maintained by a different species entirely.

Second, persuading the nominal defenders is futile because they are sincere. A reform strategy predicated on "convincing unions that reform is good for workers" misunderstands the cognitive architecture. Union leaders formed through HBU genuinely believe that ultraactivity protects workers, that individual contracts are exploitative, and that reform is a capitalist assault on social rights. These beliefs are not strategic positions adopted for bargaining advantage (though they also serve that function); they are perceptual realities generated by decades of socialization within the extended phenotype infrastructure. Persuasion fails because there is no information that could update priors formed through observation of authority reactions rather than outcome evaluation. The union leader does not believe ultraactivity is good because he has studied its effects on informal employment; he believes it is good because every authority figure he has encountered in his professional life has treated it as self-evidently good.

Third, the only viable strategy is modifying the selection environment, not the phenotype. If the extended spandrel persists because the extractive-protectionist memplex benefits from labor rigidity, then reducing the benefit of rigidity to that memplex would reduce its investment in defending the phenotype. Concretely: trade liberalization reduces the value of entry barriers (including labor market barriers) to incumbent firms. Competition policy reduces rent extraction from regulatory complexity. Financial inclusion reduces dependence on informal labor. These are not labor reforms; they are environmental modifications that alter the fitness landscape in which the extractive-protectionist memplex competes. If the memplex loses fitness, its extended spandrel loses defense. The phenotype then becomes amenable to modification, not because anyone attacked it directly, but because the replicator that benefited from its rigidity no longer has the fitness to defend it.

This analysis converges with Acemoglu and Robinson's (2012) distinction between inclusive and extractive institutions, but adds a mechanism they did not provide. Acemoglu and Robinson document that extractive institutions persist because beneficiaries resist change. The

extended spandrel explains how the resistance operates without the beneficiaries needing to act: the institutional infrastructure, originally built by a different replicator, generates resistance automatically through the cognitive and institutional channels described in the preceding sections. The extractive model benefits from passive exploitation of someone else's construction. It kills with another's knife.

VIII. Limitations

Several limitations warrant acknowledgment. First, the CLI values used throughout this paper are theoretically motivated estimations based on the institutional indicators described in Lerer (2025d, 2026a), not products of validated psychometric instruments. The comparative rankings (Argentina > Spain > Brazil > Chile) are consistent with observable reform outcomes, but the precise numerical values should be treated as approximations pending independent validation.

Second, the causal mechanism of memetic host switching is reconstructed historically, not observed experimentally. I trace the decoupling between the worker-protection memplex and the current institutional beneficiary through documented economic and institutional changes, but the claim that the extractive-protectionist memplex "captured" the phenotypic infrastructure is an inference from observed fitness consequences, not from direct observation of a switching event. The inference is strengthened by the falsifiable predictions in Section IV, but remains inductive.

Third, the informal employment figure of approximately 45% is INDEC's estimate from the Encuesta Permanente de Hogares and covers urban areas; rural informality may be higher. The precise proportion matters less than the structural point: a regime ostensibly designed for workers excludes a plurality of workers. Even if the true figure were 35% rather than 45%, the excluded worker paradox would remain.

Fourth, I have argued that the extended spandrel concept is genuinely novel, based on systematic searches across the evolutionary biology and institutional analysis literatures. It is possible that an equivalent concept exists under a different name in a body of literature I have not surveyed. If so, priority credit belongs to the prior author, and this paper's contribution would be the institutional application rather than the conceptual innovation.

Fifth, the three falsifiable predictions in Section IV have not yet been tested empirically. They are offered as a research program, not as validated findings. The predictions' value lies in their capacity to distinguish the extended spandrel hypothesis from alternative explanations; their confirmation or refutation awaits future work.

Sixth, the clientelism feedback loop described in Section IV.B (informality generating political dependence that sustains the coalition defending the regime) is an inference from observed patterns, not a demonstrated causal chain. Establishing the causal link would require micro-level data on voting behavior of informal workers, the structure of clientelist transfer networks, and the political economy of social program distribution, none of which this paper provides. The feedback loop is plausible and consistent with the broader literature on clientelism in Latin America (Levitsky 2003; Stokes et al. 2013), but its specific operation within the extended spandrel framework remains conjectural.

IX. Conclusion: The Spandrel That Changed Masters

Gould and Lewontin gave us the spandrel: a structural byproduct that may acquire function. Gould and Vrba gave us exaptation: a trait co-opted for a new role. Dawkins gave us the extended phenotype: an artifact constructed by a replicator to enhance its own fitness. None of these concepts, individually or in combination, adequately describes what happens when a structural byproduct of one replicator's construction activity is captured as extended phenotype infrastructure by a different replicator. The extended spandrel fills this gap.

Argentina's labor regime is the empirical case. Institutions built between 1944 and 1974 by the worker-protection memplex now function as the extended phenotype of the extractive-protectionist model, without any structural modification. The mechanism is memetic host switching through Parasitic Spontaneous Order: decentralized, uncoordinated, sincere, and devastating in its aggregate effects. Forty-five percent of workers are excluded from the regime that bears their name. Twenty-three reform attempts have failed. The defenders are genuine; the beneficiaries are elsewhere.

The practical implication is uncomfortable for reformers on both sides of the conventional debate. Those who attack labor protections directly are evolutionarily naive: they attack the phenotype while the replicator that benefits from it remains untouched. Those who defend labor protections sincerely are cognitively captured: they defend infrastructure that serves a model they would oppose if they could see the extended spandrel clearly. The path forward requires neither attack nor defense of the existing regime, but modification of the selection environment in which the extractive-protectionist memplex competes. When the model loses fitness, its extended spandrel loses defense, and institutional modernization becomes possible.

The extended spandrel, as a concept, has applications beyond labor law. Any institutional structure originally constructed for one purpose that now serves a different constituency through uncoordinated capture is a candidate. Regulatory agencies captured by the industries they regulate. Educational institutions that reproduce elite privilege rather than enabling social mobility.

Criminal justice systems that sustain recidivism rather than reducing it. In each case, the diagnostic question is the same: who built the institutional infrastructure, and who currently benefits from its operation? When the answers diverge, the extended spandrel framework provides the analytical tools to understand why reform fails and what, if anything, might succeed.

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